Request for Proposals (RFP)

Judicial Council of California

REGARDING:
MASTER AGREEMENTS FOR TECHNICAL STAFF AUGMENTATION SERVICES

RFP NUMBER:
RFP-IT-2026-213-RB

PROPOSALS DUE:
AUGUST 21, 2026
NO LATER THAN 1:00 PM PACIFIC TIME (PT)

Judicial Council *of* California

Judicial Council of California
455 Golden Gate Avenue · San Francisco, California 94102-3688
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REQUEST FOR PROPOSALS

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ATTACHMENTS

A. ADMINISTRATIVE RULES GOVERNING REQUESTS FOR PROPOSALS
B. JUDICIAL COUNCIL STANDARD TERMS AND CONDITIONS (sample contract document)
C. SUBMISSION OF QUESTIONS
D. COST PROPOSAL
E. EVALUATION CRITERIA & PROPOSAL SUBMISSION
F. BUSINESS & TECHNICAL REQUIREMENTS & RESPONSE
G. GENERAL CERTIFICATIONS
H. DARFUR CONTRACTING ACT
I. UNRUH AND FEHA CERTIFICATIONS
J. IRAN CONTRACTING ACT
K. PAYEE DATA RECORD
L. SMALL BUSINESS DECLARATION
M. BIDDER DECLARAION
N. DVBE DECLARATION

LINKS

BIDDER'S ACCEPTANCE OF TERMS AND CONDITIONS
(https://courts.ca.gov/system/files/file/jbcm-acceptance-terms-and-conditions.pdf)
GENERAL CERTIFICATIONS FORM
(https://courts.ca.gov/system/files/file/jbcm-general-certifications.pdf)

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DARFUR CONTRACTING ACT CERTIFICATION
(https://courts.ca.gov/system/files/file/jbcm-darfur-certification.pdf)

UNRUH CIVIL RIGHTS ACT AND CALIFORNIA FEHA CERTIFICATION
(https://courts.ca.gov/system/files/file/jbcm-unruh-feha-certification.pdf)

IRAN CONTRACTING ACT CERTIFICATION
(https://courts.ca.gov/system/files/file/jbcm-iran-certification.pdf)

PAYEE DATA RECORD FORM (STD 204)
(https://www.documents.dgs.ca.gov/dgs/fmc/pdf/std204.pdf)

PAYEE DATA RECORD SUPPLEMENT (STD 205)
(https://www.documents.dgs.ca.gov/dgs/fmc/pdf/std205.pdf)

SMALL BUSINESS DECLARATION
(https://courts.ca.gov/system/files/file/jbcm-small-business-declaration.pdf)

BIDDER DECLARATION
(https://courts.ca.gov/system/files/file/jbcm-dvbe-bidder-declaration.pdf)

DVBE DECLARATION
(https://courts.ca.gov/system/files/file/jbcm-dvbe-declaration.pdf)

1. BACKGROUND INFORMATION

1.1 The Judicial Council of California ("Judicial Council"), chaired by the Chief Justice of California, is the chief policy making agency of the California judicial system. The California Constitution directs the Council to improve the administration of justice by surveying judicial business, recommending improvements to the courts, and making recommendations annually to the Governor and the Legislature. The Judicial Council also adopts rules for court administration, practice, and procedure, and performs other functions prescribed by law.

1.2 The Judicial Council is currently responsible for the development, acquisition, implementation, and support of automated systems in the supreme and appellate courts, trial courts, and the Judicial Council. Various technology initiatives are currently being developed and supported. The Judicial Council anticipates contracting for technical consultants on an as-needed basis to assist with its various technology initiatives to support automated systems in the California courts and Judicial Council.

1.3 The following positions were awarded Work Orders from the prior Master Agreements for Technical Staff Augmentation Services RFP:

Quantity	Classification
2	Business Systems Analyst
3	Sr. Business Systems Analyst
2	Database Administrator
7	Enterprise IT Architect
27	IT Developer
4	IT Developer Lead
15	IT Project Manager
4	IT Program Manager
2	Network Engineer
16	Technical Analyst
11	SR. Technical Analyst

2. DESCRIPTION OF GOODS AND/OR SERVICES

2.1 The Judicial Council seeks to identify and retain qualified technical staff augmentation staffing agencies under a number of master agreements to supply the Judicial Council, Supreme Court, and Appellate courts, each a "Participant," with high-quality, cost-effective, professional technical staff. The master agreement holders will serve as the qualified bid list for Participant's professional technical staff requirements for the duration of the master agreement contract term. This RFP is the means for prospective technical staff augmentation staffing agencies to submit their qualifications to the Judicial Council and request selection for award of a master agreement as a result of this RFP.

2.2 Judicial Council intends to award up to sixteen (16) master agreements to the highest scoring proposers for an initial two (2) year term, with three (3) consecutive one-year option terms to renew, for a potential maximum term of five (5) years. The initial term and pricing of each master agreement is anticipated to cover the period of November 1, 2026, through October 31, 2028. If the Judicial Council elects to extend the term of these master agreements by exercising any of the three (3) one-year options to renew, any agreed upon price adjustment (whether an increase or decrease) may not exceed the average percentage change in the 12-month average of the Consumer Price

Index (CPI) below, for the previous three years ending on December 31 of the year just prior to the applicable year of the Option Term.
http://data.bls.gov/timeseries/CUUR0000SA0?output_view=pct_12mths

2.3 Over the last year, the Judicial Council spent approximately $8 million on technical staff augmentation personnel. However, the Judicial Council does not guarantee that master agreement awardees will receive a specific volume of work, a specific total contract amount, or a specific order value under any master agreement executed pursuant to this RFP. Additionally, there will be no limit on the number of Work Orders the Judicial Council may issue under a master agreement, nor will there be any specific limitation on the quantity, minimum and/or maximum value of individual Work Orders.

2.4 This RFP will cover professional technical staff requirement needs for the JCC located in San Francisco and Sacramento, California and the needs for the Supreme Court located in San Francisco, and the Courts of Appeal located in San Francisco, Los Angeles, Sacramento, San Diego, Fresno, and San Jose. It is the expectation of the Judicial Council that the majority of professional technical staff consultant requirement needs under the master agreements anticipated by this RFP will be either remote or at the Judicial Council locations in San Francisco or Sacramento, however, consultants may be based at other locations as set forth in the Work Orders issued pursuant to the master agreements.

2.5 Scope of Services

2.5.1 The technical staff augmentation staffing agencies selected as a result of this RFP will be awarded master agreements that will serve as making the master agreement holders, the qualified bidders list for the Judicial Council's professional technical staff augmentation requirements for the duration of master agreement contract term and any option terms.

2.5.2 Pursuant to the Work Order Process and Administration (set forth in **Attachment B** to this RFP), the Participant, as staffing requirements dictate, will solicit master agreement holders for proposals to fill individual professional technical staff augmentation requirements by issuing Work Order Request Forms (WORF) to the master agreement holders.

2.5.3 Applying the selection criteria set forth in each individual Work Order Request Forms issued pursuant to the Work Order Process and Administration, the Participant will select the proposal that best meets the requirements and award a Work Order to that master agreement holder.

2.6 Existing Work Orders

2.6.1 It is the intent of the Judicial Council that existing contracted professional technical staff will remain under their current existing Work Orders until such Work Orders expire and not be transitioned to a subsequent Master Agreement should the existing contracted professional technical staff's contractor be awarded a Master Agreement.

3. TIMELINE FOR THIS RFP

3.1 **Schedule of Events**. The Judicial Council has developed the following list of key events and dates related to this RFP ("Schedule of Events"). All dates are subject to change at the discretion of Judicial Council.

No.	*Key Events*	*Key Date / Time (PT)*
1.	RFP Issued	July 29, 2026
2.	Deadline for Submission of Questions **(Attachment C)** Email to: Solicitations@jud.ca.gov	August 4, 2026 @ 1:00pm PST
3.	Questions and answers Posted	August 11, 2026
4.	Latest date and time proposal may be submitted Email Non-Cost Proposal to: Solicitations@jud.ca.gov Email Cost Proposal to: IT-2026-213-RB-COST@jud.ca.gov	August 21, 2026 @ 1:00pm PST
5.	Evaluation of proposals *(estimate only)*	August 24, 2026 – September 7, 2026
6.	Public opening of Cost Proposals	September 9, 2026 @ 10:00am PST
7.	Notice of Intent to Award *(estimate only)*	September 16, 2026
8.	Negotiations and execution of contract *(estimate only)*	September 17, 2026- October 31, 2026
9.	Contract start date *(estimate only)*	November 1, 2026,
10.	Contract end date *(estimate only)*	October 31, 2028, plus three option years.

4. RFP ATTACHMENTS AND LINKS

The following attachments and links are included as part of this RFP:

Attachment/Link	*Description*
Attachment A: Administrative Rules Governing RFPs (IT Goods and Services)	These rules govern this solicitation.
Attachment B: Judicial Council Standard Terms and Conditions	If selected, the person or entity submitting a proposal (the "Proposer") must sign this Judicial Council Standard Form agreement. If any exceptions are identified or additional provisions proposed, the Proposer must also submit a red-lined version of the Terms and conditions with its Proposal that clearly identifies all proposed changes and provides a written explanation or rationale for each proposed change.

Attachment/Link	*Description*
Attachment C: Bidder's Submission of Questions	On this form, Proposers may submit written questions and requests for information with respect to this RFP. Questions and requests must be submitted to Solicitations@jud.ca.gov with the RFP number and the title of this RFP in the subject line.
Attachment D: Cost Proposal (Pricing)	The Proposer must complete the Cost Proposal form and submit the completed Cost Proposal separate from the Non-Cost Proposal IT-2026-213-RB-COST@jud.ca.gov with the RFP number and 'COST' in the subject line.
Attachment E	Evaluation Criteria & Proposal Submission Forms
Attachment E-1	Methodologies
Attachment E-2	Placement History
Attachment E-3	Key Staff
Attachment E-4	Proposer's Acceptance of, or Exceptions to, Master Agreement Terms and Conditions
Attachment E-5	Viability of Firm
Attachment F	Business & Technical Requirements & Response
Attachment G: General Certifications Form	The Bidder must complete the General Certifications Form and submit the completed form with its bid. The General Certifications form is available at the following link: https://courts.ca.gov/system/files/file/jbcm-general-certifications.pdf
Attachment H: Darfur Contracting Act Certification	The Bidder must complete the Darfur Contracting Act Certification and submit the completed certification with its bid. The Darfur Contracting Act Certification is available at the following link: https://courts.ca.gov/system/files/file/jbcm-darfur-certification.pdf
Attachment I: Unruh and FEHA Certification	The Bidder must complete the Unruh Civil Rights Act and California Fair Employment and Housing Act Certification. The Unruh and FEHA Certification is available at the following link: https://courts.ca.gov/system/files/file/jbcm-unruh-feha-certification.pdf
Attachment J: Iran Contracting Act Certification	The Bidder must complete the Iran Contracting Act Certification and submit the completed certification with its bid. The Iran Contracting Act Certification is available at the following link: https://courts.ca.gov/system/files/file/jbcm-iran-certification.pdf
Attachment K: Payee Data Record	The Proposer must complete the Payee Data Record and submit the completed form with its proposal. The Payee Data Record (STD 204) is available at the following link: https://www.documents.dgs.ca.gov/dgs/fmc/pdf/std204.pdf. Additionally, if necessary, the Payee Data Record Supplement (STD 205) is required (i) if Proposer's remittance address information is different than the mailing address on the Payee Data Record (STD 204); (ii) for multiple remittance addresses, and (iii) for additional Authorized Representatives of the Payee not identified on the Payee Data Record (STD 204). The Payee Data Record Supplement (STD 205) is available at the following link: https://www.documents.dgs.ca.gov/dgs/fmc/pdf/std205.pdf.

Attachment/Link	*Description*
Attachment L: Small Business Declaration	The Bidder must complete this form only if it wishes to claim the small business preference associated with this solicitation. The Small Business Declaration is available at the following link: https://courts.ca.gov/system/files/file/jbcm-small-business-declaration.pdf
Attachment M: Bidder Declaration	If Bidder wishes to seek the DVBE incentive, Bidder must complete and submit with its bid the Bidder Declaration https://courts.ca.gov/system/files/file/jbcm-dvbe-bidder-declaration.pdf. Bidder must submit with the Bidder Declaration all materials required in the Bidder Declaration.
Attachment N: DVBE Declaration	If Bidder wishes to seek the DVBE incentive, Bidder must submit with its bid a DVBE Declaration https://courts.ca.gov/system/files/file/jbcm-dvbe-bidder-declaration.pdf completed and signed by each DVBE that will provide goods and/or services in connection with the contract. If Bidder is itself a DVBE, it must complete and sign the DVBE Declaration. If Bidder will use DVBE subcontractors, each DVBE subcontractor must complete and sign a DVBE Declaration.

5. PAYMENT INFORMATION

5.1 Payment terms will be specified in the contract document that will be executed as a result of an award made under this RFP; however, prospective Contractors are hereby advised that Judicial Council payments are made by the State of California, and the State does not make any advance payment for services.

5.2 Payment provisions are set forth in **Attachment B**, Appendix B– Pricing and Payment

5.3 The Judicial council will not make any advance payments.

5.4 Judicial Council will endeavor to pay invoices within sixty (60) days after receipt of a correct, itemized invoice. In no event shall Judicial Council be liable for interest or late charges for any late payments.

6. WRITTEN QUESTIONS

6.1 Proposers may submit written questions and requests for information with respect to this RFP. All questions and requests must be submitted using the Proposer's Submission of Questions form in **Attachment C** and must be submitted by the deadline indicated in this RFP's Schedule of Events. The Proposer's Submission of Questions form must be submitted by email to Solicitations@jud.ca.gov with the RFP number and title in the subject line. The Judicial Council will post any answers to Proposers' properly submitted questions and requests for information as indicated in the Schedule of Events. The Judicial Council may make updates or other changes to this RFP in response to submitted questions if Judicial Council deems such necessary in its discretion and will post updated documents or other addendum to this RFP on the Judicial Council website publishing this RFP prior to the due date for Proposals.

7. RESPONDING TO THIS RFP

7.1 **Responsiveness**. Responsive Proposals will provide straightforward, concise information that fully satisfies this RFP's specified requirements. Proposers should only submit documentation required and requested by this RFP. Expensive bindings, color displays, and the like are not necessary or desired. In responding to this RFP, Proposers should place emphasis on brevity, conformity to instructions, specified requirements, and clarity of content. Any materials submitted with Proposals that are outside of this RFP's specifications will not be considered.

7.2 **Proposal Format**. The Judicial Council will only accept Proposals in an electronic format. Proposers must submit their Proposals with all required contents in two parts: the Proposer's non-cost portion of the proposal ("Non-Cost Proposal") and the Proposer's Cost Proposal ("Cost Proposal").

7.3 **Proposal Submission Requirements**.

7.3.1 **Electronic Submission**. The Judicial Council will only accept electronically submitted Proposals. Non-Cost Proposal and Cost Proposal files must be emailed to the separate email addresses indicated in the Schedule of Events. Proposers must not combine the Non-Cost Proposal and Cost Proposal at any time during the solicitation and evaluation process.

7.3.2 **Non-Cost Proposal Submission**.

7.3.2.1 Proposers must submit one (1) electronic file of the Non-Cost Proposal using PDF or Word format. The Non-Cost Proposal must be submitted to Judicial Council separate from the Cost Proposal.

7.3.2.2 Proposers must include the RFP number and the name of the Proposer's firm in the subject line of the email for the Non-Cost Proposal. Proposers must include the RFP number and 'Non-Cost Proposal' in the name of the electronic file of the Non-Cost Proposal.

7.3.3 **Cost Proposal Submission.**

7.3.3.1 Proposers must submit one (1) electronic file of the Cost Proposal using the same file format as **Attachment D** which is attached hereto. The Cost Proposal must be submitted to Judicial Council separate from the Non-Cost Proposal; the Cost Proposal must not be combined or incorporated in any way with the Non-Cost Proposal.

7.3.3.2 Proposers must include the RFP number and the name of the Proposer's firm in the subject line of the email for the Cost Proposal. Proposers must include the RFP number and 'Cost' in the name of the electronic file of the Cost Proposal.

7.3.4 **File Size Limitations**. The Judicial Council may not be able to receive electronic submissions with files equal to or greater than 30MB in size (individually or in total). Proposers must make

an effort to compress all files so that submissions are less than 30MB in size. If a file cannot be reduced to below 30MB, then Proposers must divide the file into increments of less than 30MB sent via multiple emails. If multiple emails with incremental documents are required, Proposers must also reference the portion of the Proposal and file being submitted in the subject line of each email (e.g., "Non-Cost Proposal: Part 1 of 3," etc.). The Judicial Council is not responsible for any submissions exceeding 30MB which are systematically rejected due to excessive file size or otherwise.

7.4 **Submission Timelines**.

7.4.1 Proposals must be delivered by the date and time listed in the Schedule of Events. Late proposals will not be accepted.

7.4.2 Submission acceptance will be based on the date and time the emails are received by Judicial Council. Due to the potential for email transmission delays, which may cause late receipt and non-acceptance of proposals, it is recommended that Proposers email their proposals well in advance of the due date and time. It is the Proposer's responsibility to verify their submission was received. Proposers should confirm that their Proposal was successfully emailed and received by checking their junk folders for "Undeliverable" emails.

7.4.3 Proposer(s) assumes all risk for ensuring Judicial Council's receipt of Proposals no later than the date and time specified in the Schedule of Events.

8. PROPOSAL CONTENTS

8.1 **Non-Cost Proposal**. The following information must be included in the Non-Cost Proposal. Any Non-Cost Proposal lacking any of the following information may be deemed non-responsive. The Non-Cost Proposal is to be inclusive of resumes, forms, and pictures, and organized according to the numbering system reflected below.

8.1.1 **Cover Letter**. A cover letter that provides the exact business name under which the Proposer proposes to conduct business with Judicial Council. The cover letter must also indicate the following:

8.1.1.1 Proposer's address, telephone, email address, and federal tax identification number.

8.1.1.2 Name, title, address, telephone number, and email address of the individual who will act as the Proposer's designated representative for purposes of this RFP.

8.1.2 **IT Services**.

8.1.2.1 For each key staff member: a resume describing the individual's background and experience, as well as the individual's ability and experience in conducting the proposed activities

8.1.2.2 The Proposer's Technical Proposal must be submitted using **Attachment E** Evaluation Criteria & Proposal Submission Form and **Attachment F** Technical Response. Failure to use **Attachment E** and **Attachment F** for submission of the Technical Proposal may result in the proposal being deemed non-responsive and rejected at the sole discretion of the Judicial Council.

8.1.3 **Conflicts of Interest**. If applicable, provide a statement of any recent, current, or anticipated contractual obligations that relate in any way to similar work, the goods or services, or Judicial Council that may have a potential to conflict with the Proposer's ability to provide the goods or services described herein to Judicial Council. Proposers cannot have any pre-existing or obtain any new economic interests (e.g., submit, propose, bid, contract, sub-contract, consult, etc. on any work that would or have potential to be a conflict) for goods or services in which the Proposer may be requested to provide under a contract awarded pursuant to this RFP.

8.1.4 **Acceptance of the Terms and Conditions**.

8.1.4.1 On the Bidder's Acceptance of Terms and Conditions https://courts.ca.gov/system/files/file/jbcm-acceptance-terms-and-conditions.pdf, the Proposer must check the appropriate box and sign the form. If the Proposer marks the second box, it must provide the required additional materials. An "exception" includes any addition, deletion, or other modification.

8.1.4.2 If exceptions are identified, the Proposer must also submit (a) a red-lined version of the Terms and Conditions that implements all proposed changes, and (b) a written explanation or rationale for each exception and/or proposed change.

8.1.4.1 Note: A material exception (addition, deletion, or other modification) to a Minimum Term will render a proposal non-responsive. The Judicial Council, in its sole discretion, will determine what constitutes a material exception.

8.1.5 **Certifications, Attachments, and Other Required Materials**. Complete, sign, and submit each of the following Certifications and attachments with the Proposer's Non-Cost Proposal:

8.1.5.1 **General Certifications Form** (https://courts.ca.gov/system/files/file/jbcm-general-certifications.pdf)

8.1.5.2 **Darfur Contracting Act Certification** (https://courts.ca.gov/system/files/file/jbcm-darfur-certification.pdf)

8.1.5.3 **Unruh Civil Rights Act and California Fair Employment and Housing Act Certification** (https://courts.ca.gov/system/files/file/jbcm-unruh-feha-certification.pdf)

8.1.5.4 **Iran Contracting Act Certification** (https://courts.ca.gov/system/files/file/jbcm-iran-certification.pdf)

8.1.5.5 **Payee Data Record (STD 204)**, which must be completed in the exact name of the business entity under which the Proposer proposes to do business with Judicial Council. The Payee Data Record (STD 204) is available at the following link: https://www.documents.dgs.ca.gov/dgs/fmc/pdf/std204.pdf.

Additionally, if necessary, the **Payee Data Record Supplement (STD 205)** is required (i) if Proposer's remittance address information is different than the mailing address on the Payee Data Record (STD 204); (ii) for multiple remittance addresses, and (iii) for additional Authorized Representatives of the Payee not identified on the Payee Data Record (STD 204). The Payee Data Record Supplement (STD 205) is available at the following link: https://www.documents.dgs.ca.gov/dgs/fmc/pdf/std205.pdf.

8.1.5.6 **Small Business Declaration**. If Bidder wishes to seek the small business preference, Bidder must complete and submit with its bid the Small Business Declaration (https://courts.ca.gov/system/files/file/jbcm-small-business-declaration.pdf). Bidder must submit with the Small Business Declaration all materials required in the Small Business Declaration.

8.1.5.7 **DVBE Certification**. If Bidder wishes to seek the DVBE incentive, Bidder must complete and submit with its bid the Bidder Declaration (https://courts.ca.gov/system/files/file/jbcm-dvbe-bidder-declaration.pdf). Bidder must submit with the Bidder Declaration all materials required in the Bidder Declaration. Bidder must submit with its bid a DVBE Declaration (https://courts.ca.gov/system/files/file/jbcm-dvbe-declaration.pdf) completed and signed by each DVBE that will provide goods and/or services in connection with the contract. If Bidder is itself a DVBE, it must complete and sign the DVBE Declaration. If Bidder will use DVBE subcontractors, each DVBE subcontractor must complete and sign a DVBE Declaration. NOTE: The DVBE Declaration is not required if Bidder will qualify for the DVBE incentive using a BUP on file with DGS.

8.1.5.8 If the Proposer is a California corporation, limited liability company ("LLC"), limited partnership ("LP"), or limited liability partnership ("LLP"), proof that the Proposer is in good standing in California. If the Proposer is a foreign corporation, LLC, LP, or LLP, and the Proposer conducts or will conduct (if awarded a contract) intrastate business in California, proof that the Proposer is qualified to do business and in good standing in California. If the Proposer is a foreign corporation, LLC, LP, or LLP, and the Proposer does not (and will not if awarded a contract) conduct intrastate business in California, proof that the Proposer is in good standing in its home jurisdiction.

8.1.5.9 Copies of Proposer's (and any subcontractors') current business licenses.

8.2 **Cost Proposal**.

8.2.1 For the Proposer's Cost Proposal, the Proposer is required to complete the Cost Proposal form in **Attachment D**, in Word form. Part I through Part IV must be filled out in their entirety. Failure to use **Attachment D** for submission of the Cost Proposal, in Word format, may result in the proposal being deemed non-responsive and rejected at the sole discretion of the Judicial Council.

8.2.2 Do not change or edit the form of **Attachment D.**

8.2.3 **Attachment D** must be signed by an authorized representative of the Proposer's organization.

NOTE: It is unlawful for any person engaged in business within this state to sell or use any article or product as a "loss leader" as defined in Section 17030 of the Business and Professions Code.

9. SELECTION PROCESS

9.1 **Non-Cost Proposals**. The evaluation team will complete its evaluation of non-cost criteria for all Proposals using the methods specified in this RFP.

9.1.1 **Interviews**. The Judicial Council may, at its discretion, conduct interviews with Proposers to clarify aspects set forth in their proposals or to assist in finalizing the ranking of top-ranked proposals. The interview process may require a demonstration. The interview may also require a demonstration of equivalence if a brand name is included in the specifications. The Proposers will be notified of their interview date and time and any requirements therefor. Notifications will be sent to the email address provided as the Proposer's contact information. Interviews will be held remotely via video conference.

9.1.2 After the interviews, if any, the adjusted results of the completed Non-Cost Proposal evaluation will be published on the website publishing this RFP, excluding the small business preference and DVBE incentive.

9.2 **Cost Proposals**. The Cost Proposal will be publicly opened at the date and time and using the method noted in the Schedule of Events. The evaluation team will evaluate the opened Cost Proposals.

9.3 **Award**. The highest-scoring Proposer(s) after applying any small business preference, DVBE incentive, or discounts will be contacted regarding contract award and execution. If a contract is awarded under this RFP, Judicial Council will post a Notice of Intent to Award on the website publishing this RFP that lists the names of the selected Proposer(s).

9.4 **Verification**. At any time, Judicial Council may contact previous clients and owners to verify the experience and performance of the prospective Proposer, their key personnel, and their sub-Proposers.

10. EVALUATION OF PROPOSALS

10.1 **Required Contents**. At the time Proposals are opened, each Proposal will be reviewed for minimum requirements of this RFP and the presence or absence of all required contents.

10.2 **Proposal Evaluation**. The Judicial Council will evaluate responsive Proposals on a 100-point scale according to the following criteria ("Proposal Evaluation"):

CRITERIA	MAXIMUM NUMBER OF CRITERIA POINTS
NON-COST PROPOSALS	
Placement History (Attachment E-2)	15
Proposers Acceptance of Master Agreement Terms and Conditions (Attachment E-4)	10
Key Staff (Attachment E-3)	3
Methodologies (Attachment E-1)	17
Viability of Firm (Attachment E-5)	12
DVBE Incentive Proposer will receive a DVBE incentive if, in Judicial Council's sole determination, Proposer has met all applicable requirements.	3
COST PROPOSALS	
Cost Proposal Proposer's cost for the services provided in **Attachment D** pursuant to the indicated instructions and scoring methodology.	40
MAXIMUM NUMBER OF POINTS:	**100**

11. CONFIDENTIAL OR PROPRIETARY INFORMATION

11.1 PROPOSALS ARE SUBJECT TO DISCLOSURE TO THIRD PARTIES AND MEMBERS OF THE PUBLIC PURSUANT TO APPLICABLE LAWS, INCLUDING PUBLIC DISCLOSURE PURSUANT TO RULE 10.500 OF THE CALIFORNIA RULES OF COURT. Except as required by law, Judicial Council will not disclose (i) social security numbers, or (ii) balance sheets or income statements submitted by a Proposer that is not a publicly traded corporation. All other information in proposals may be disclosed in response to applicable public records requests, or as otherwise required by law. Such disclosure may be made regardless of whether the proposal (or portions thereof) is marked "confidential," "proprietary," "copyright ©," or otherwise, and regardless of any statement in the proposal (a) purporting to limit Judicial Council's right to disclose information in the proposal, or (b) requiring Judicial Council to inform or obtain the consent of the Proposer prior to the disclosure of the proposal (or portions thereof). Any proposal that is password protected, or contains portions that are password protected, may be rejected. Submission of any proposal pursuant to this RFP constitutes

acknowledgment and consent by the Proposer to the potential public disclosure of its proposal content, as set forth in this RFP. Proposers are accordingly cautioned not to include confidential, proprietary, or privileged information in proposals.

12. CONTRACT TERMS AND ADMINISTRATIVE RULES

12.1 **Irrevocable Offer**. All submitted Proposals shall constitute and be an irrevocable offer by the Proposer that is valid for ninety (90) days following the Proposal due date. In the event a final contract has not been awarded within this ninety (90) day period, Judicial Council reserves the right to negotiate extensions to this period with Proposers. The Judicial Council may release all offers not selected under this RFP upon issuance of a Notice of Intent to Award.

12.2 **Award and Execution of Agreement**. If a satisfactory agreement has not been signed within thirty (30) calendar days of Judicial Council's request for the Proposer to execute a contract, Judicial Council reserves the right to terminate the award.

12.3 **Future Requests**. The Proposer(s) selected under this RFP will not be precluded from consideration nor given special status in any future solicitations issued by Judicial Council.

12.4 **No Guarantee**. The Judicial Council does not guarantee any amount or duration of work under a Master Agreement, nor does Judicial Council guarantee that any subsequent projects will be assigned to the Proposer regardless of being awarded a Master Agreement.

12.5 **Provision of the Work**. Proposers will provide all Services in accordance with the Work Orders to be issued by Judicial Council under the Master Agreement. Proposers will provide all Services in compliance with the provisions of the Master Agreement along with any additional provisions specified in a Work Order such as schedule, key personnel, and sub-Proposer requirements.

12.6 **Rate Increases**. Proposers may request, in writing no less than sixty (60) days prior to the start of any extension of the term of an awarded agreement, if exercised by Judicial Council, that the Proposer's rates be adjusted based on the California Bureau of Labor Statistics' Consumer Price Index increase for the preceding twelve (12) months prior to the increase becoming effective. A Proposer may not be entitled to an increase of its rates if the Proposer fails to properly make such a request under the terms of its agreement.

13. SMALL BUSINESS PREFERENCE

13.1 Eligibility for and application of the small business preference are governed by Judicial Council's Small Business Preference Procedures for the Procurement of Information Technology Goods and Services. The Proposer will receive a small business preference if, in Judicial Council's sole determination, the Proposer has met all applicable requirements. If the Proposer receives the small business preference, the score assigned to its proposal will be increased by an amount equal to 5% of the points assigned to the highest scored proposal. If a DVBE incentive is also offered in connection with this solicitation, additional rules regarding the interaction between the small business preference and the DVBE incentive apply.

13.2 Small business participation is not mandatory. Failure to qualify for the small business preference will not render a proposal non-responsive.

13.3 To receive the small business preference, the Proposer must be either (i) a Department of General Services ("DGS") certified small business or microbusiness performing a commercially useful function, or (ii) a DGS-certified small business nonprofit veteran service agency.

13.4 If the Proposer wishes to seek the small business preference, the Proposer must complete and submit with its proposal the Small Business Declaration (https://courts.ca.gov/system/files/file/jbcm-small-business-declaration.pdf). The Proposer must submit with the Small Business Declaration all materials required in the Small Business Declaration.

13.5 Failure to complete and submit the Small Business Declaration as required will result in the Proposer not receiving the small business preference. In addition, Judicial Council may request additional written clarifying information. Failure to provide this information as requested will result in the Proposer not receiving the small business preference.

13.6 If the Proposer receives the small business preference, (i) the Proposer will be required to complete a post-contract report; and (ii) failure to meet the small business commitment set forth in its proposal will constitute a breach of contract.

FRAUDULENT MISREPREPRETATION IN CONNECTION WITH THE SMALL BUSINESS PREFERNCE IS UNLAWFUL AND IS PUNISHABLE BY CIVIL PENALTIES. SEE GOVERNMENT CODE SECTION 14842.5.

14. DISABLED VETERAN BUSINESS ENTERPRISE INCENTIVE

14.1 The Judicial Council has a Disabled Veterans Business Enterprise (DVBE) program with a total participation goal of three percent (3%). Qualification for the DVBE incentive is not mandatory. Failure to qualify for the DVBE incentive will not render a Proposer's Proposal non-responsive.

14.2 Eligibility for and application of the DVBE incentive is governed by Judicial Council's DVBE Rules and Procedures. Proposer will receive a DVBE incentive if, in Judicial Council's sole determination, Proposer has met all applicable requirements. If Proposer receives the DVBE incentive, a number of points will be added to the score assigned to Proposer's proposal. The number of points that will be added is specified in section 10.0 above.

14.3 To receive the DVBE incentive, at least 3% of the contract goods and/or services must be provided by a DVBE performing a commercially useful function. Or, for solicitations of non-IT goods and IT goods and services, Proposer may have an approved Business Utilization Plan ("BUP") on file with the California Department of General Services ("DGS").

14.4 If a Proposer wishes to seek the DVBE incentive:

14.4.1 Bidder must complete and submit with its Non-Cost Bid the Bidder Declaration (https://courts.ca.gov/system/files/file/jbcm-dvbe-bidder-declaration.pdf). Bidder must submit with the Bidder Declaration all materials required in the Bidder Declaration.

14.4.2 Bidder must submit with its bid a DVBE Declaration (https://courts.ca.gov/system/files/file/jbcm-dvbe-declaration.pdf) completed and signed by each DVBE that will provide goods and/or services in connection with the contract. If Bidder is itself a DVBE, it must complete and sign the DVBE Declaration. If Bidder will use DVBE subcontractors, each DVBE subcontractor must complete and sign a DVBE Declaration. NOTE: The DVBE Declaration is not required if Bidder will qualify for the DVBE incentive using a BUP on file with DGS.

14.5 Failure to complete and submit these forms as required will result in Proposer not receiving the DVBE incentive. In addition, Judicial Council may request additional written clarifying information. Failure to provide this information as requested will result in Proposer not receiving the DVBE incentive.

14.6 If this solicitation is for IT goods and services, the application of the DVBE incentive may be affected by application of the small business preference. For additional information, see Judicial Council's Small Business Preference Procedures for the Procurement of Information Technology Goods and Services.

14.7 If Proposer receives the DVBE incentive: (i) Proposer will be required to complete a post-contract DVBE certification if DVBE subcontractors are used; (ii) Proposer must use any DVBE subcontractor(s) identified in its proposal unless Judicial Council approves in writing the substitution of another DVBE; and (iii) failure to meet the DVBE commitment set forth in its proposal will constitute a breach of contract.

14.8 If using DVBE subcontractors, the Proposer must complete and return to Judicial Council a copy of the post-contract certification form (https://www.courts.ca.gov/documents/JBCM-Post-Contract-Certification-Form.docx), promptly upon completion of the awarded contract, and by no later than the date of submission of Proposer's final invoice to Judicial Council. If the Proposer fails to do so, Judicial Council will withhold $10,000 from the final payment or withhold the full payment if it is less than $10,000, until the Proposer submits a complete and accurate post-contract certification form.

14.9 When a Proposer fails to comply with the post-contract certification requirement in this section and a payment withhold is applied to a contract, Judicial Council shall allow the Proposer to cure the deficiency after written notice. Notwithstanding the foregoing or any other law, if after at least 15 calendar days, but no more than 30 calendar days, from the date of the written notice the Proposer refuses to comply with the certification requirements, Judicial Council shall permanently deduct $10,000 from the final payment, or the full payment if less than $10,000.

FRAUDULENT MISREPREPRETATION IN CONNECTION WITH THE DVBE INCENTIVE IS A MISDEMEANOR AND IS PUNISHABLE BY IMPRISONMENT OR FINE, AND VIOLATORS ARE LIABLE FOR CIVIL PENALTIES. SEE MVC 999.9.

15. LABOR CODE PROVISIONS

15.1 Prevailing Wages

15.1.1 As applicable, Contractors and their subcontractors shall pay all workers on services performed pursuant to a contract awarded under this RFP not less than the general prevailing rate of per diem wages and the general prevailing rate for holiday and overtime work as determined by the Director of the California Department of Industrial Relations ("DIR") for the type of work performed and the locality in which the work is to be performed, pursuant to section 1770 et seq. of the California Labor Code. Copies of the general prevailing rates of per diem wages for each craft, classification, or type of worker needed to execute a contract, as determined by the Director of DIR, are on file at Judicial Council's principal office and available on the internet at https://www.dir.ca.gov/.

15.1.2 Each Project may be subject to compliance monitoring and enforcement by DIR. Contractors shall post job site notices, as prescribed by regulation. Contractors shall comply with all applicable requirements of Labor Code section 1771.4.

15.2 Registration

15.2.1 As applicable for the services being performed, Consultants shall comply with the registration and compliance monitoring provisions of Labor Code section 1771.4, including furnishing its certified payroll records ("CPR(s)") to the Labor Commissioner of California and complying with any applicable enforcement by DIR. Labor Code section 1771.1(a) states the following:

> A contractor or subcontractor shall not be qualified to bid on, be listed in a bid proposal, subject to the requirements of Section 4104 of the Public Contract Code, or engage in the performance of any contract for public work, as defined in this chapter, unless currently registered and qualified to perform public work pursuant to Section 1725.5. It is not a violation of this section for an unregistered contractor to submit a bid that is authorized by Section 7029.1 of the Business and Professions Code or by Section 10164 or 20103.5 of the Public Contract Code, provided the contractor is registered to perform public work pursuant to Section 1725.5 at the time the contract is awarded.

15.2.2 Contractors required to so comply with said registration and compliance monitoring provisions must provide proof of registration (i.e., the Consultant's DIR Registration Number) with its Proposal.

16. GENERATIVE ARTIFICIAL INTELLIGENCE

Definitions:

"Artificial intelligence" or "AI" means technology that enables computers and machines to reason, learn, and act in a way that would typically require human intelligence.

"Generative Artificial Intelligence" or "GenAI" means an artificial intelligence system that can generate derived synthetic content, including text, images, video, audio, code, and data visualizations, that emulates the structure and characteristics of the system's training data.

16.1 In its proposal, Proposer must notify Judicial Council if Proposer's goods or services contain or utilize GenAI (or will contain or utilize GenAI), or if GenAI is or will be included in any services, goods, or deliverables that materially impact:

16.1.1 functionality of a Judicial Council system (i.e., the work using GenAI could have a significant, substantial effect on the system's data integrity, availability, confidentiality, or security, and failure to perform such work in accordance with the contract could cause major disruptions to Judicial Council operations);

16.1.2 risk to Judicial Council (i.e., the work using GenAI could have a significant, substantial effect on Judicial Council's operations, finances, security, or reputation, and failure to perform such work in accordance with the contract would constitute a high likelihood of damage to Judicial Council); or

16.1.3 contract performance (i.e., when failure to conduct work which uses GenAI in accordance with the contract would constitute a material breach of contract).

16.2 Proposer's failure to disclose GenAI to Judicial Council may result in disqualification (at Judicial Council's sole discretion), and Judicial Council reserves the right to seek any and all relief it may be entitled to as a result of such non-disclosure.

16.3 The Judicial Council reserves the right to incorporate GenAI-related provisions into the final contract and to reject bids/offers that present an unacceptable level of risk to Judicial Council, as determined by Judicial Council in its sole discretion.

17. ADMINISTRATIVE RULES GOVERNING RFPs

17.1 The Judicial Council's Administrative Rules Governing Requests for Proposals can be found in **Attachment A**. By virtue of submission of a Proposal, the Proposer agrees to be bound by said Administrative Rules for this RFP.

17.2 The Judicial Council reserves the right to reject any and all Proposals, in whole or in part, as well as the right to issue similar requests for proposals in the future. This RFP is in no way a contract, obligation, or contract and in no way is Judicial Council or the State of California responsible for the

cost of preparation or any expenses incurred in responding to this RFP. A Proposer's submitted Proposal will be retained for official files and be subject to public disclosure under rule 10.500 of the California Rules of Court.

18. PROTESTS

Any protests will be handled in accordance with Chapter 7 of the Judicial Branch Contracting Manual (see www.courts.ca.gov/documents/jbcl-manual.pdf). Failure of a Proposer to comply with the protest procedures set forth in that chapter will render a protest inadequate and non-responsive and will result in rejection of the protest. The deadline for Judicial Council to receive a solicitation specifications protest is the proposal due date. Protests must be sent to: Solicitations@jud.ca.gov.